Massachusetts PROTECT Act: What's Changing Staff Quick Info · Oct. 2026

A new state law limits when people can be arrested for immigration reasons in some places, and adds protections for families and people in detention. Some parts are already in effect. More start **Nov. 3** (page 2).

IN EFFECT NOW

Schools + health care

SINCE SEPT. 1

- No immigration arrests at **public + charter schools** or **licensed child care** without a judge's warrant
- Same rule in areas **hospitals + clinics mark as private**, like exam rooms (since Oct. 4)

Places of worship are not covered. Lobbies + waiting rooms only if marked private.

Family emergency planning

SINCE AUG. 5

- **Caregiver affidavit:** no court, but **must be notarized** and signed in front of 2 adult witnesses (not the caregiver). Caregiver must live with the child. Covers school + medical decisions for up to 2 years; parent keeps all rights
- **Standby guardian:** named on court form MPC 142. Starts if the parent is detained or deported. Guardian must file with Probate and Family Court **within 30 days**, unless a judge already confirmed it

*Plan **before** a crisis. MIRA family guide on page 3.*

Police + courts

SINCE SEPT. 4

- Police, sheriffs, and court staff generally **can't ask about or record** immigration status (some exceptions)
- Generally can't hold someone just because ICE asks, or share private info with ICE

This limits local help to ICE. It does not stop ICE itself.

ICE inspection at work

SINCE AUG. 5

- If ICE says it will check workers' I-9 papers (proof of work permission), the employer generally must **tell all employees in writing within 48 hours**

Workers get a warning. ICE can still check the papers.

Urgent? Detention, transfer, or a court date coming up: get the student to a lawyer right away. Lawyer directory on page 3.

Courthouse arrests

STARTS NOV. 3

- No ICE arrests **anywhere on court property** (the "curtilage"): steps, sidewalks, lawns, plazas, and court parking lots, **without a judge's warrant or order**
- Before any arrest, ICE must **show a judge at that courthouse** the warrant or order. The judge reviews it
- No immigration arrests inside a courtroom

Court is not fully safe. Students with a court date should talk to a lawyer first.

Detention + transfers

STARTS NOV. 3

- State and county jails holding people for ICE must explain rights in the person's language and allow free video calls with lawyers
- If someone is moved, the jail must try to **tell their lawyer or family contact within 6 hours**, including where they went
- Each needs a public phone number to check who is held there

Not every place ICE holds people is covered.

U + T visa forms

STARTS NOV. 3

- For some crime or trafficking survivors. Needs a signed form from police or another agency
- Agencies generally must answer within **45 days**, or **14 business days** if urgent

The signed form is not a visa. Wage theft or housing problems alone usually don't qualify.

Most of these rules need a judge's warrant. ICE usually doesn't have one.

ICE warrant: does NOT count

- Says "Department of Homeland Security" at the top (Form I-200 or I-205)
- Signed by an **immigration officer**

Judge's warrant: counts

- Names a court, like "Trial Court of Massachusetts" or "U.S. District Court"
- Signed by a **judge** or magistrate

Check the signature line. Real samples on page 4. Staff can ask to see the paper. Don't physically block anyone. Call a lawyer or LUCE.

Support + reporting · *Optional routes, not a required chain. Share only with the student's consent.*

LUCE hotline: 617-370-5023 · to report ICE activity you see

Police/courts breaking rules: AG complaint (link on page 3)

Questions? Ask me:

Marlie · 770-378-9207
mcreed@mlri.org · mcreed@ebhcs.org

PROTECT Act: More Info + Links

Scan a code with a phone camera to open the page. You can share these with students.

HELP + RIGHTS

MIRA PROTECT Act hub

Start here. Explainers in English, Spanish, Haitian Creole, Portuguese. Links to the AG complaint process.

miracoalition.org/resources/the-protect-act-8-5-2026

MIRA legal services

Directory of immigration lawyers and legal aid groups in Massachusetts.

miracoalition.org/resources/legal-services

Know Your Rights

What to do if ICE comes to your home, work, or car.

miracoalition.org/resources/know-your-rights

WARRANTS + FAMILY PLANNING

Sample warrants (mass.gov)

Full state guide. Its **Appendix A (page 12)** is page 4 of this handout.

mass.gov/doc/protect-act-guidance-and-model-policy-for-covered-health-care-providers

MIRA family preparedness

Family plan packets in 7 languages, caregiver form tools, help for detained parents.

miracoalition.org/family-preparedness

Probate Court guardianship forms

Includes form MPC 142 to name a standby guardian.

mass.gov/lists/probate-and-family-court-forms-for-guardianship-and-conservatorship

OFFICIAL SOURCES

The law: Acts of 2026, Ch. 163

Full text of the PROTECT Act.

malegislature.gov/Laws/SessionLaws/Acts/2026/Chapter163

mass.gov PROTECT Act guidance

The state's official explanation of the law.

mass.gov/info-details/the-protect-act

Trial Court ICE policy

Rules for ICE in Massachusetts courthouses.

mass.gov/policy-statement/massachusetts-trial-court-policy-on-interactions-with-united-states-immigration-and-customs-enforcement

Appendix A: Sample Warrants

From the state's PROTECT Act guidance. Look at the **top** (who issued it) and the **signature line** (who signed it).

Figure 1: State court judge's warrant · *counts*

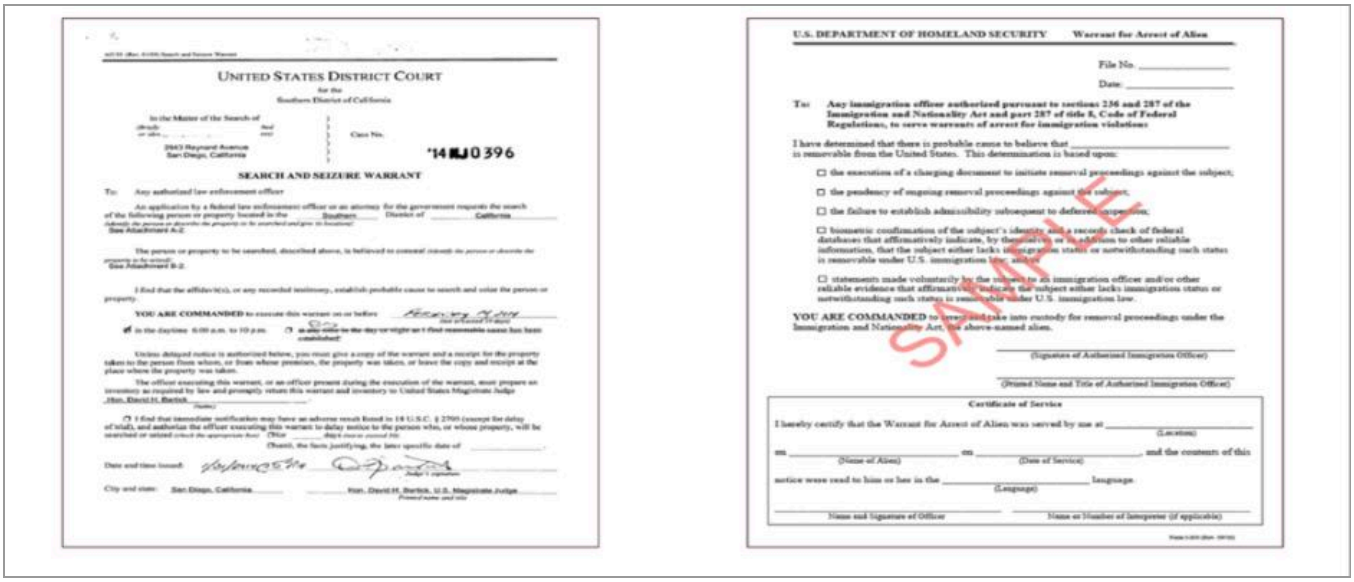
APPLICATION FOR SEARCH WARRANT G.L. c. 276, §§ 1-7	TRIAL COURT OF MASSACHUSETTS
NAME OF APPLICANT [redacted]	SUPERIOR COURT DEPT. ESSEX DIVISION
POSITION OF APPLICANT Trooper, Massachusetts State Police	**SEARCH WARRANT DOCKET NUMBER**

I, the undersigned APPLICANT, being duly sworn, depose and say that:

1. I have the following information based upon the attached affidavit(s), consisting of a total of 77 pages, which is (are) incorporated herein by reference.
2. Based upon this information, there is PROBABLE CAUSE to believe that the property decribed below:
   - [ ] *has been stolen, embezzled, or obtained by false pretenses.*
   - [X] *is intended for use or has been used as the means of committing a crime.*
   - [ ] *has been concealed to prevent a crime from being discovered.*
   - [X] *is unlawfully possessed or concealed for an unlawful purpose.*
   - [X] *is evidence of a crime or is evidence of criminal activity.*
   - [ ] *other (specify):*
3. I am seeking the issuance of a warrant to search for the following property (*describe the property to be searched for as particularly as possible*):
   See Addendum A, which is incorporated herein by reference.
4. Based upon this information, there is also probable cause to believe that the property may be found (*check as many as apply*):
   - [X] *at (identify the exact location or description of the place(s) to be searched):* _____

Top right says **"Trial Court of Massachusetts."** A judge or magistrate signs it.

Figure 2: Federal judge's warrant (left) vs. ICE warrant (right)



UNITED STATES DISTRICT COURT

SEARCH AND SEIZURE WARRANT

U.S. DEPARTMENT OF HOMELAND SECURITY — Warrant for Arrest of Alien

SAMPLE

Counts. Top says **"United States District Court."** Signed by a **U.S. Magistrate Judge**.

Does NOT count. Top says **"U.S. Department of Homeland Security."** Signed by an **immigration officer** (Form I-200).